

PERFORMANCE WORK STATEMENT (PWS)

PSNS & IMF LABORATORY, [REDACTED] PREVENTATIVE MAINTENANCE, SOFTWARE UPDATES, AND TECHNICAL SUPPORT OF FEI SCANNING ELECTRON MICROSCOPE

PART 1 GENERAL INFORMATION

1. **GENERAL:** This is a non-personal services contract to provide preventive maintenance, software updates, and technical support for mission-vital Scanning Electron Microscope (SEM) (AID# 4523A18136; S/N 9952871) . The Government shall not exercise direct supervision or control over any contractor employees. Notwithstanding, contractor shall ensure employees comply with all requirements of this Performance Work Statement (PWS) and contract.

1.1 **Description of Services/Introduction:** The contractor shall provide all personnel, equipment, supplies, facilities, parts, transportation, living expenses, tools, materials, supervision, and other items and non-personnel services necessary to provide technical support and service. Service includes at least one visit during the contract period for annual preventative maintenance including software updates, as specified, for the government-owned equipment as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall perform to the standards in this contract.

1.2 **Background:** The Materials Engineering Branch of the PSNS&IMF Laboratory requires a contractor to provide annual preventative maintenance

1.3 **Objectives:** To maintain and technically support the SEM instrumentation.

1.4 **Scope:** The contractor shall perform at least one preventative maintenance and make software updates. Services include cleaning, maintenance (ordinary repairs and adjustments arising from normal usage of the equipment), and providing field service reports and calibration certificates.

1.5 **Period of Performance:** The period of performance shall be for one (1) Base Year of 12 months and four (4) 12-month option years. The Period of Performance reads as follows:

Base Year: 07/11/2026 - 07/10/2027
Option Year I: 07/11/2027 - 07/10/2028
Option Year II: 07/11/2028 - 07/10/2029
Option Year II: 07/11/2029 - 07/10/2030
Option Year IV: 07/11/2030 - 07/10/2031

1.6 **Quality Control:** The contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's quality control program is the means by which he assures himself that his work complies with the requirement of the contract.

1.6.1 **Quality Assurance:** The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.7 Location:

1.7.1 Place of Performance: The work to be performed under this contract will be performed at PSNS & IMF, [REDACTED], 1400 Farragut Ave, Bremerton, WA 98314.

1.7.2 Hours of Operation: The contractor is responsible for conducting business, between the hours of 0730 to 1600 Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. For other than firm fixed price contracts, the contractor will not be reimbursed when the government facility is closed for the above reasons. The Contractor must at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.7.3 Recognized Holidays: Contractor is not required to perform services on federal holidays. The list of current federal holidays can be found here: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>

1.8 Security Requirements: Contractor personnel performing work under this contract must have a United States citizenship and be able to pass a security screening to obtain green badge clearance at time of contract performance, and must maintain the level of security required for the life of the contract. The security requirements are in accordance with the attached DD254.

Contractor Employees, in order to gain access to the government facility identified in paragraph 1.7.1 to perform work under this contract, shall at a minimum be an American citizen and make available to the security office two forms of identification in timely manner in order to gain proper badging. Contractor must follow PSNS & IMF procedures and policies that are required to obtain personnel badges and/or vehicle access to the job location prior to the performance of the contract.

1.8.1 Physical Security: The contractor shall be responsible for safeguarding all government equipment, information and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured. If the contractor requires use of a computer, the contractor from the COR the PSNS digital media and computer requirements form at least 10 business days prior to the start of onsite services. The contractor shall comply with Shipyard digital media and computer requirements.

1.9 Special Qualifications: N/A

1.10 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The contracting officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the contracting officer will apprise the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

1.11 Contracting Officer Representative (COR): The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel. The COR is not authorized to change any of the terms and conditions of the resulting order.

The COR is NOT authorized to change any of the terms and conditions of this contract. **Only the warranted Contracting Officer is authorized to make modifications/changes to the terms and conditions of this contract.** If the Contractor believes any Government personnel has effectively issued a change resulting in a change in effort and price/cost of the contract, the Contractor shall immediately notify the Contracting Officer.

CORS:

PRIMARY

[REDACTED]

ALTERNATE

[REDACTED]

Government Technical Points of Contact (TPOC): The TPOC(s) monitor all technical aspects of the contract and assists in contract administration. The TPOC is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notify both the Contracting Officer and Contractor of any deficiencies; coordinate availability of Government furnished property; and provide site entry of Contractor personnel.

The TPOC(s) are NOT authorized to change any of the terms and conditions of this contract. **Only the warranted Contracting Officer is authorized to make modifications/changes to the terms and conditions of this contract.** If the Contractor believes any Government personnel has effectively issued a change resulting in a change in effort and price/cost of the contract, the Contractor shall immediately notify the Contracting Officer.

TPOCS:

PRIMARY

[REDACTED]

ALTERNATE

[REDACTED]

1.12 **Key Personnel:** The contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the contractor when the manager is absent shall be designated in writing to the contracting officer. The contract manager or alternate shall have full authority to act for the contractor on all contract matters relating to execution of this contract.

1.12.1 **Identification of Contractor Employees:** All contractor personnel working in situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression that they are Government officials. All contractor personnel on a government installation will be required to obtain and wear badges in the performance of this contract.

1.13 **Data Rights:** The Government has unlimited rights to all documents/material produced under this contract. All documents and materials, to include the source codes of any software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership/copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the contractor without written permission from the Contracting Officer. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

PART 2
DEFINITIONS & ACRONYMS

2. **DEFINITIONS AND ACRONYMS:**

2.1. COMMON DEFINITIONS: Per Clause 52.212-4(e), clause 52.202-1 is incorporated by reference to this contract.

2.2 SPECIAL DEFINITIONS: NA

PART 3
GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. **GOVERNMENT FURNISHED ITEMS AND SERVICES:**

3.1. Services: NA

3.2 Facilities: The Government will provide the necessary workspace for the contractor staff to provide the support outlined in the PWS.

3.3 Utilities: The Government will provide basic utilities for equipment function.

3.4 Equipment: The Government will provide Thermo Fisher Model Prisma E SEM (S/N 9952871)

3.5 Materials: NA

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. **CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:**

4.1 General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

PART 5
SPECIFIC TASKS

5. SPECIFIC TASKS:

5.1. Basic Services: The contractor shall provide preventive maintenance, software updates, and technical support for 1200267 / 9952871 / 11500922 (Thermo Fisher Model Prisma E SEM (S/N 9952871) and accessories: 1091079 / 9952871.02 (Lens-mounted), 1120429 / 9952871.03 (Solid-state), 1120471 / 9952871.10 (Manual User Interface), 1126924 / 9952871.01 (Beam Deceleration), 1126938 / 9952871.08 (Integrated Current), 1133679 / 9952871.04 (MAPS 3 for SEM), 1140650 / 9952871.06 (In-chamber Nav-Cam), and 9432 023 11011 / 9952871.09 (JOYSTICK USB).

- 5.2. Unlimited telephone support with 4 hour targeted response.
- 5.3. Onsite labor response with 48-hour targeted response; includes labor, travel, living expenses, and parts coverage.
- 5.4. Unlimited labor hours including travel time and expenses.
- 5.5. All necessary spare parts including the accessories listed.
- 5.6. Replacement FEG tip for applicable products.
- 5.7. One on site visit complete preventative maintenance and make software updates.
- 5.8. Provide field service report.
- 5.9. Provide calibration certificates.

PART 6
ATTACHMENT/TECHNICAL EXHIBIT LISTING

7. ATTACHMENT/TECHNICAL EXHIBIT LIST:

7.1 Attachment 1/Technical Exhibit 1 – Performance Requirements Summary:

7.2. Attachment 2/Technical Exhibit 2 – Deliverables Schedule:

TECHNICAL EXHIBIT 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective (The Service required—usually a shall statement)	Standard	Performance Threshold (This is the maximum error rate. It could possibly be “Zero deviation from standard”)	Method of Surveillance
PRS # 1. Vendor shall perform onsite preventative maintenance and software update service for SEM	Contractor shall perform the tasks per the PWS.	The contractor shall comply with all PWS requirements and communicate to the COR if any of the requested performance characteristics cannot be met prior to the start of services being executed. The contractor shall not deviate from the PWS. The contractor shall communicate with COR for any delays in performing the assessment. In the event of Government caused delays, contractor shall communicate issues to the COR.	COR will observe and report service has been completed in accordance with the PWS.
PRS # 2 Vendor required use of computer or digital media.	The contractor shall request the PSNS digital media and computer requirements form from the COR at least 10 business days prior to start of onsite services.	The contractor shall comply with Shipyard digital media and computer requirements.	COR will provide information requirements to Contractor. Contractor is responsible for requesting information requirements.
PRS # 3 Vendor shall submit required reports to COR	Contractor shall submit the field service report after the completion of the onsite repair.	The contractor shall comply with all PWS requirements and communicate to the Government if any of the requested performance characteristics cannot be met prior to delivery.	COR will log receipt of field service report.
PRS # 4 Regular working hours	Vendor shall perform services during regular working hours defined in PWS.	The contractor shall notify the COR a minimum of 4 business days to request approval to work outside of regular working hours	COR will observe vendor to ensure work is being scheduled and completed during regular working hours.

TECHNICAL EXHIBIT 2

Deliverables Schedule

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
Field service report for on-site service PWS Part 5	Once per service	1	Electronic or hard copy	COR
Calibration certificates PWS Part 5	Once per calibration	1	Electronic or hard copy	Key Personnel